

ZOOM email



Re: Fw: PA Salesforce 

Matilde Tonazzo to: Stefania Di Cristofaro

07/08/2021 10:37 AM

Cc Daniele Ronchi, Barbara Narducci, Carla Monguzzi, Diego Rivadeneira, Marjorie Pihourd,
: Daniela Scaramuccia, Barbara.Cecere, linda.roveda, Valentina Piccoli
This message is digitally signed.

Ciao Stefania,

sono d'accordo e non ho ulteriori commenti.

Rimango a disposizione.

Un caro saluto

Matilde

Matilde Maria Chiara Tonazzo
Attorney

IBM General Lawyer
Legal Resource Centre Dublin

Matilde.Tonazzo@ibm.com

+353 873612544



IBM House, Shelbourne Road
Ballsbridge, Dublin 4
Ireland

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Stefania Di Cristofaro

Daniele, Matilde, con l'obiettivo di sottoporre a Rolo la picture compless...

08/07/2021 09:14:42

From: Stefania Di Cristofaro/Italy/IBM
To: Daniele Ronchi/Italy/IBM@IBM, Matilde Tonazzo/Ireland/IBM@IBM
Cc: Barbara Narducci/Italy/IBM@IBM, Carla Monguzzi/Italy/IBM@IBM, Diego Rivadeneira/Hungary/IBM@IBM, Marjorie Pihourd/Hungary/IBM@IBM, Daniela Scaramuccia/Italy/IBM@IBM, Barbara.Cecere@ibm.com, linda.roveda@it.ibm.com, Valentina Piccoli/Italy/IBM@IBM
Date: 08/07/2021 09:14
Subject: Re: Fw: PA Salesforce

Daniele, Matilde,

con l'obiettivo di sottoporre a Rolo la *picture* complessiva e facilitare il processo di risposta alla Consultazione di mercato pubblicata da Consip (trovate il doc word alla fine del messaggio), anche alla luce delle specifiche ricevute da Salesforce e di seguito riportate, provo a sintetizzare e fugare ogni eventuale dubbio residuo:

1. Il Participation Agreement ci abilita a rivendere prodotti Salesforce, ovvero consumption di piattaforma e NON servizi, e andrà accompagnato da ulteriore documentazione contrattuale (all'interno del cosiddetto *Incremental End User Process* di Salesforce stessa) per ogni transazione cliente. Questo risulta ancor più vero nel caso di clienti del Public Sector per cui sono richieste specifiche T&C (e.g. "Tracciabilità dei flussi finanziari")
2. Alla luce dell'analisi fatta da Matilde, richiederemo a Rolando l'approvazione per la firma del PA, così come ricevuto da Salesforce in data 5 luglio u.s.
3. Stante quanto definito al punto 1, tale PA ci consente di rispondere alla Consultazione di mercato qui allegata, che non richiede alcuna quotazione o qualsivoglia proposta commerciale, ma si limita di fatto a "censire" le aziende che possono (perchè partner rivenditori di prodotti Salesforce) e sono interessate a rispondere ad eventuali gare future.

Se riuscite a darci riscontro entro oggi, chiediamo aiuto a Valentina per fissare una call con Rolo entro domani/max lunedì mattina.

Grazie mille.

"Fabio Enrico Bassi"

Ciao Stefania, come anticipato per le vie brevi e come puoi vedere dall...

07/07/2021 20:09:54

From: "Fabio Enrico Bassi" <fbassi@salesforce.com>

ZOOM email

To: "Stefania Di Cristofaro" <stefania.dicristofaro@ibm.com>
Date: 07/07/2021 20:09
Subject: [EXTERNAL] Re: Consultazione di mercato

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Ciao Stefania,

come anticipato per le vie brevi e come puoi vedere dalla risposta ricevuta dalle BO, il PA (Participation Agreement) è il documento abilitante alla rivendita dei prodotti Salesforce.

Ti allego sotto quanto ricevuto in risposta:

"The PA is the only agreement IBM needs to sign to be able to transact with end customers. However, for every new customer they transact with, we need to run the deal through the Incremental End User Process. This is done by either you or the AE raising a Channel DSR on the oppty and asking to have the deal run through the Incremental End User process. This is especially important for Pub Sec customers where there are discounts involved"

Perciò una volta firmato lo stesso non vedo nessun impedimento a rispondere alla gara in oggetto.

fb

Fabio Bassi

Senior Partner Account Manager, Alliances & Channel Italia

+39 346 6766414 - fbassi@salesforce.com



Acquisizione Salesforce per Sogei - Documento di consultazione del mercato.docx

Stefania Di Cristofaro

Client Partner, Hybrid Cloud

ZOOM email

IBM Global Business Services

m: +393472309738

Daniele Ronchi

Ciao Matilde. Capisco per cui che non ci sono altri commenti e possia...

07/07/2021 17:39:56

From: daniele_ronchi@it.ibm.com
To: Matilde.Tonazzo@ibm.com
Cc: b.narducci@it.ibm.com, carla_monguzzi@it.ibm.com, diego.rivadeneira@hu.ibm.com, MPihourd@hu.ibm.com, stefania.dicristofaro@ibm.com
Date: 07/07/2021 17:39
Subject: Re: Fw: PA Salesforce

Ciao Matilde. Capisco per cui che non ci sono altri commenti e possiamo procedere come indicato sotto.

Stefania,
riesci a chiudere lato Business con le conferme/approvazioni di cui sotto ?

Daniele Ronchi

Head of Procurement Italy & SPGI

Finance & Operations, Global Procurement

+39 3357694079

daniele_ronchi@it.ibm.com

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Daniele Ronchi

Grazie Matilde. A questo punto per procedere con la firma del docume...

07/07/2021 09:34:37

From: Daniele Ronchi/Italy/IBM
To: Matilde Tonazzo/Ireland/IBM@IBM
Cc: Marjorie Pihourd/Hungary/IBM@IBM, Stefania Di Cristofaro/Italy/IBM@IBM, Barbara Narducci/Italy/IBM@IBM, Diego Rivadeneira/Hungary/IBM@IBM, Carla Monguzzi/Italy/IBM@IBM
Date: 07/07/2021 09:34
Subject: Fw: PA Salesforce

Grazie Matilde.

A questo punto per procedere con la firma del documento come proposto da Salesforce serve:

- accettazione da parte del Business delle aree di rischio e delle limitazioni evidenziate nella tua mail qui sotto
- conferma da parte del Business che il PA verrà utilizzato solo per rivendita di piattaforma SW senza utilizzo di servizi ed in

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- particolare di servizi on site
- esclusione di eventuali clienti Pubblici nell'utilizzo del PA a meno di definire a livello dello specifico ingaggio delle cause necessarie e che non sono state include nel PA in oggetto

Se c'è altro o ci sono altri commenti pls facci sapere.

Daniele Ronchi

Head of Procurement Italy & SPGI

Finance & Operations, Global Procurement

+39 3357694079

daniele_ronchi@it.ibm.com

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----- Forwarded by Daniele Ronchi/Italy/IBM on 07/07/2021 08:13 -----

From: Matilde Tonazzo/Ireland/IBM
To: Marjorie Pihourd/Hungary/IBM@IBM
Cc: Stefania Di Cristofaro/Italy/IBM@IBM, Daniele Ronchi/Italy/IBM@IBM, Barbara Narducci/Italy/IBM@IBM, Diego Rivadeneira/Hungary/IBM@IBM, Carla Monguzzi/Italy/IBM@IBM
Date: 06/07/2021 19:09
Subject: PA Salesforce

Cari tutti,

di seguito la gap analysis del PA sottoposto alla mia revisione.

Supplier requirements

Supplier deleted the clause regarding its Individual Requirements. The Supplier is requested to declare to have the mandatory requirements set forth in:

1. Legislative Decree n. 159/2011; and
2. Legislative Decree n. 50/2016 Article 85 and this statement shall be undertaken not in general but specifically towards IBM and further, undertakes to provide any documentation necessary to confirm the compliance of these requirements as well as the documentary evidence of the renewal, issued by the competent authorities, of any license required to carry out business activities with the public administration. The deletion of this clause has the following main consequences a) the supplier shall never be involved in contracting with public entities based on the PA, as those requirements are mandatory in public tenders b) in case Supplier ceases to be compliant with the requirements set forth

in the aforementioned legislation, IBM will have no lever in order to cause the termination of the agreement and may be involved in such non compliance, as the compliance with such legislation wouldn't be an obligation towards IBM.

Prohibition of subcontracting

Supplier deleted the prohibition of subcontract to third parties without previous approval from IBM. Further, the Supplier deleted the undertaking of being responsible for the performance of subcontractors towards IBM. The consequence of this deletion is that Supplier is entitled to use subcontractors without a previous screening by IBM regarding their integrity. Any concern regarding the supplier's subcontractor and any crime eventually perfected by them, may have IBM involved. Further, as the Supplier is not undertaking any liability, in case of default by the subcontractor, IBM shall have no alternative to finding and chasing them in order to get the eventual damage restoration.

Supplier also deleted the provision regarding the prohibition of the the assignment, in full or in part, of services and orders to its subsidiaries. As the subcontracting is forbidden by art. 105 Legislative Decree n. 50/2016, the supplier shall never be involved in contracting with public entities based on the PA.

Intellectual property protection

Supplier deleted the clause regarding intellectual property protection and they didn't undertake to indemnify and hold IBM harmless from any damage, cost and/or expenses arising out from the infringement of the above mentioned provisions of law. This deletion has as its main consequence that IBM shall bear the cost arising from any intellectual property infringement caused by the supplier's product. Due to the nature of the product sold by Salesforce, which per my understanding is a platform, it is unlikely to foresee this kind of violation.

Limitation of Liability

The Supplier deleted the provision regarding the limitation of liability, providing that any limitation of liability will be applicable within the limits of art. 1229 c.c. As the agreement is constructed and regulated under Italian Laws, this clause would be applicable anyway and no limitation of liability which exceeds the aforementioned limit would be effective.

Termination for cause - *diffida ad adempiere* - *Clausola risolutiva espressa*

The Supplier deleted the provision which entitles IBM to request compliance to the supplier of any obligation that the supplier is in breach of. If Supplier fails to remedy such non-compliance within the period indicated by the request, this would cause termination, with no obligation for IBM to make any payment for the services performed. The deletion of this clause has as its consequence that in case of default of the supplier, IBM won't be able to rely on a *diffida ad adempiere* in order to terminate the agreement but the termination shall be asked through the court. Further to the costs arising from the trials, it is not possible to ask for termination for the non compliance of any obligation, but only in case the

default is severe enough and the defaulted obligation is relevant enough to pass through the evaluation requested by article 1455. Consequently, IBM may remain bound to the agreement that the supplier is defaulting with no chance to exit, suffering the default also towards an eventual client.

The supplier also deleted any reference to the *clausola risolutiva espressa ex art. 1456* of the Italian Civil Code. Consequently, in case of breach of its obligations IBM may suffer that defaulted obligation is not relevant enough to pass through the evaluation requested by article 1455. Consequently, IBM may remain bound to the agreement that the supplier is defaulting with no chance to exit, suffering the default also towards an eventual client.

The supplier deleted the derogation of art. 1671 of the Civil Code, therefore such article will apply: upon termination without cause, IBM will compensate Supplier for all the expenses incurred by Supplier.

Personnel

The supplier deleted the whole "Personnel" clause.

Therefore, the Supplier is not undertaking towards IBM to regularly hire its personnel and to comply with all the obligations arising out of the legal provisions and regulations on employment, collective labour agreements and social insurance, bearing the relative cost neither to supervise the compliance of mandatory obligations in terms of remuneration, social security and tax contributions for the Supplier's personnel and its sub-suppliers. As a consequence, in case of breach of such obligation, IBM won't have any leverage in order to terminate the agreement and, further, such personnel, may involve IBM in their eventual requests of being restored.

The supplier also deleted the obligation to supervise the compliance with regulations protecting the health and safety of the Supplier's personnel pursuant to Legislative Decree 81/08. Due to the services provided by Salesforce, it is unlikely that those provisions have a relevant application on any agreement with the supplier.

The supplier deleted the undertaking to comply to art. 17-bis of Legislative Decree n. 241/1997 and to provide IBM with the some labour documents (Copy of *Modello F24* of the employees working in the services and al list of employees' names, with fiscal code, engaged in the former month in the Services, specifying the amount of worked hours, the related salary, the amount of the fiscal deductions for each employee.) or the certification containing the requirements set forth in paragraph 5, art. 17-bis. The deletion of this clause does not lift the supplier from the obligations of law set forth therein, however, deleting the clause from the agreement, they will be only responsible towards the State and not towards IBM in case of eventual non compliance, affecting also IBM with their eventual non compliance, while the deleted clause was entitling IBM to suspend payments in case of breach, which is a effective method in order to get compliance. Further, the non compliance from the supplier may also cause IBM to be in breach towards an eventual client, as this requirement is always included in agreements with clients.

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Posted workers

The supplier deleted the clause regarding posted workers, as defined in EC Posted Worker Directive 96/71/EC or temporary agency workers (as defined in EC Directive 08/104/EC. Consequently, the PA shall not be used in any transaction that involves posted workers.

Tracing of Financial Flows

The Supplier deleted the undertaking to fully comply with the provisions of the Law August 13, 2010 n.136 on Tracing of Financial Flows related to public contracts. Therefore, the supplier shall never be involved in contracting with public entities based on the PA, as those requirements are mandatory in public tenders.

* * *

Rimango a disposizione per eventuali chiarimenti

Un caro saluto

Matilde

Matilde Maria Chiara Tonazzo

Attorney

IBM General Lawyer
Legal Resource Centre Dublin

Matilde.Tonazzo@ibm.com

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Marjorie Pihourd

Ciao Matilde, in allegato il GRA

06/07/2021 10:13:16

From: Marjorie Pihourd/Hungary/IBM
To: Matilde Tonazzo/Ireland/IBM@IBM
Cc: Stefania Di Cristofaro/Italy/IBM@IBM, Daniele Ronchi/Italy/IBM@IBM, Barbara Narducci/Italy/IBM@IBM, Diego Rivadeneira/Hungary/IBM@IBM
Date: 06/07/2021 10:13
Subject: Re: Fw: [EXTERNAL] Re: Fw: PA Salesforce

Ciao Matilde,

in allegato il GRA

[attachment "IBM SALESFORCE Reseller Agreement- executed 10 15 2020(5).pdf" deleted by Daniele Ronchi/Italy/IBM]

Grazie

Marjorie Pihourd

Sourcing Buyer - GBS Squad

Finance & Operations, Global Procurement

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IBM Hungary International Shared Service Centre Kft

1138 Budapest, Népfürdő utca 22.

Cg.01-09-729517 - Fővárosi Törvényszék Cégbírósága

Matilde Tonazzo

Ciao Stefania, ti ringrazio per il chiarimento.

07/06/2021 11:06:00 AM

From: Matilde Tonazzo/Ireland/IBM
To: Stefania Di Cristofaro/Italy/IBM@IBM
Cc: Daniele Ronchi/Italy/IBM@IBM, Barbara Narducci/Italy/IBM@IBM, Diego Rivadeneira/Hungary/IBM@IBM, Marjorie Pihourd/Hungary/IBM@IBM
Date: 07/06/2021 11:06 AM
Subject: Re: Fw: [EXTERNAL] Re: Fw: PA Salesforce

Ciao Stefania,

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ti ringrazio per il chiarimento.

Ti anticipo che le modifiche in discussione sono:

- fatturazione elettronica: non e' una clausola di natura legale, e' necessaria una verifica di procurement con tax.
- split payment: come fatturazione elettronica, e' necessaria la verifica di procurement con tax
- normativa 231: se qualcuno riesce ad inviarmi il GRA prima della call di oggi, verifico se possiamo chiudere questo punto entro oggi.

Rimango a disposizione per eventuali chiarimenti.

Un caro saluto

Matilde

Matilde Maria Chiara Tonazzo
Attorney

IBM General Lawyer
Legal Resource Centre Dublin

Matilde.Tonazzo@ibm.com

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Stefania Di Cristofaro

Ciao, Matilde. Ne parleremo domani, ma la scelta del template purtrop...

05/07/2021 16:51:50

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From: Stefania Di Cristofaro/Italy/IBM
To: Matilde Tonazzo/Ireland/IBM@IBM
Cc: Daniele Ronchi/Italy/IBM@IBM, Barbara Narducci/Italy/IBM@IBM, Diego Rivadeneira/Hungary/IBM@IBM, Marjorie Pihour/Hungary/IBM@IBM
Date: 05/07/2021 16:51
Subject: Re: Fw: [EXTERNAL] Re: Fw: PA Salesforce

Ciao, Matilde.

Ne parleremo domani, ma la scelta del template purtroppo non è negoziabile.

Salesforce, così come tutti gli ISV e hyperscaler, obbliga alla revisione (comunque molto limitata) dei loro documenti standard.

L'unico documento da cui, dunque, si può partire è il "Participation Agreement" ricevuto da loro, peraltro già accettato da alcune nostre country (e.g. Spagna)

Sentiamoci anche prima di domani, se può essere di aiuto.

Grazie mille.

Stefania Di Cristofaro
Client Partner, Hybrid Cloud
IBM Global Business Services

m: +393472309738

Matilde Tonazzo

Ciao Daniele, abbiamo fissato una call domani pomeriggio nel tentativ...

05/07/2021 17:10:37

From: Matilde.Tonazzo@ibm.com
To: daniele_ronchi@it.ibm.com
Cc: b.narducci@it.ibm.com, diego.rivadeneira@hu.ibm.com, MPihour/Hungary/IBM@IBM, stefania.dicristofaro@ibm.com
Date: 05/07/2021 17:10
Subject: Re: Fw: [EXTERNAL] Re: Fw: PA Salesforce

Ciao Daniele,

abbiamo fissato una call domani pomeriggio nel tentativo di finalizzare i punti aperti al piu' presto e al fine di assicurare alla richiesta la massima priorita'.

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Colgo l'occasione per precisare che la scelta del template da cui partire non e' influenzabile dalla fusione legale, in quanto rimessa esclusivamente a procurement. Come legale, posso raccomandare l'utilizzo del nostro template, dal momento che la scelta di un altro template richiede la pre analisi del documento e il conseguente dilatarsi de tempi.

Di conseguenza, una volta che sara' scelto il template su cui negoziare, rinnovo la mia totale disponibilita' sia a rivedere i documenti internamente sia alla negoziazione con i legali di salesforce.

Rimango a totale disposizione.

Un caro saluto

Matilde

Matilde Maria Chiara Tonazzo
Attorney

IBM General Lawyer
Legal Resource Centre Dublin

Matilde.Tonazzo@ibm.com

+353 873612544



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Daniele Ronchi

ciao Matilde, so che stai seguendo tu la cosa. Qui di seguito la risposta...

05/07/2021 14:39:26

From: Daniele Ronchi/Italy/IBM

ZOOM email

To: Matilde Tonazzo/Ireland/IBM@IBM
Cc: Diego Rivadeneira/Hungary/IBM@IBM, Marjorie Pihourd/Hungary/IBM@IBM, Stefania Di Cristofaro/Italy/IBM@IBM, Barbara Narducci/Italy/IBM@IBM
Date: 05/07/2021 14:39
Subject: Fw: [EXTERNAL] Re: Fw: PA Salesforce

ciao Matilde,
so che stai seguendo tu la cosa. Qui di seguito la risposta di Salesforce alla nostra proposta di PA.

Loro reclamano il fatto che il contratto Global ha come focus la rivendita di SW e propongono il teplate allegato dove hanno incluso le local specifics che ritengono applicabili al caso .

Sono disponibili a valutare l'inserimento di ulteriori eventuali previsioni inderogabili previste in base alla legge italiana.

Per eventuali esclusioni rispetto a quanto da noi proposto (nwl caso non facciano riferimento a inderogabili previsioni i legge) possiamo indirizzare a Stefania i rischi associati per accettazione lato business .

Ci viene segnalato infatti da GBS che è estremamente urgente chiudere con il PA entro la metà di luglio.

Daniele Ronchi

Head of Procurement Italy & SPGI
Finance & Operations, Global Procurement
+39 3357694079
daniele_ronchi@it.ibm.com

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----- Forwarded by Daniele Ronchi/Italy/IBM on 05/07/2021 15:34 -----

From: "Fabio Enrico Bassi" <fbassi@salesforce.com>
To: "Daniele Ronchi" <daniele_ronchi@it.ibm.com>
Cc: "Stefano La Rosa" <slarosa@salesforce.com>, "Marjorie Pihourd" <MPihourd@hu.ibm.com>, "Stefania Di Cristofaro" <stefania.dicristofaro@ibm.com>, "Diego Rivadeneira" <diego.rivadeneira@hu.ibm.com>
Date: 05/07/2021 14:26
Subject: [EXTERNAL] Re: Fw: PA Salesforce

Gent.mo Dott.Ronchi,

come anticipato telefonicamente a Stefania, le modifiche che ci avete inviato circa 15 giorni fa non possono

essere da noi recepite in quanto riteniamo vi siano stati alcuni fraintendimenti circa l'oggetto del contratto e la natura dei servizi oggetto di rivendita.

Ribadiamo la nostra massima attenzione alla conclusione dell'iter contrattuale in tempi brevi e, mutuando l'esperienza relativa ai Participation Agreement sottoscritti dalle nostre affiliate di Brasile, Irlanda, Spagna e Francia, vi riproponiamo in allegato il documento che riprende gli inserimenti richiesti a nostro avviso per adattare il Global Reseller Agreement (GRA) alla normativa cogente italiana.

Riteniamo infatti che gli unici temi da indirizzare per localizzare l'accordo in Italia riguardino unicamente fatturazione elettronica, split payment e normativa 231 (il limite ex art. 1229 c.c. alla limitabilità della responsabilità è già incluso alla sezione 13.3 del Global Reseller Agreement/GRA), ovvero quelle previsioni che richiedono effettive modifiche del GRA.

Resta per il resto infatti inteso come ogni paese abbia previsioni normative locali e che il rispetto delle stesse sia ricompreso nell'impegno al rispetto della legge applicabile già incluso a livello del GRA.

Il documento che andiamo a condividere può naturalmente porsi come punto partenza in caso riteneste necessario includere ulteriori previsioni inderogabili previste in base alla legge italiana e tali da essere incluse all'interno di un accordo quadro.

Siamo convinti di poter lavorare in vista dell'obiettivo comune di accelerare l'iter approvativo da entrambe le parti così da definire il documento entro la metà di luglio.

Cordiali saluti

Fabio Bassi

Senior Partner Account Manager, Alliances & Channel Italia

+39 346 6766414 - fbassi@salesforce.com

On Fri, Jul 2, 2021 at 4:36 PM Daniele Ronchi <daniele_ronchi@it.ibm.com> wrote:

Buonasera Dott. Bassi, Dott. La Rosa,

avremmo necessità di avere un riscontro urgente in merito alla richiesta di Marjorie qui sotto. Sono diverse settimane che il tema del Participation Agreement è in fase di definizione e avremmo la necessità di chiudere la cosa a stretto giro.

Riuscireste a farci pervenire un riscontro in merito alla bozza inviata ?

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Ringrazio anticipatamente.

Daniele Ronchi

Head of Procurement Italy & SPGI

Finance & Operations, Global Procurement

+39 3357694079

daniele_ronchi@it.ibm.com

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----- Forwarded by Marjorie Pihourd/Hungary/IBM on 07/02/2021 04:31 PM -----

From: Marjorie Pihourd/Hungary/IBM

To: "Fabio Enrico Bassi" <fbassi@salesforce.com>, "Stefano La Rosa" <slarosa@salesforce.com>

Date: 07/02/2021 03:38 PM

Subject: PA Salesforce

Buongiorno Fabio, Stefano,

Potete cortesemente inviarmi il PA con le modifiche che volete apportare in modo tale che io lo possa condividere con i ns legali?

Grazie in anticipo

Marjorie Pihourd

Sourcing Buyer - GBS Squad

Finance & Operations, Global Procurement

+3617771246

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IBM

IBM Hungary International Shared Service Centre Kft
1138 Budapest, Népfürdő utca 22.
Cg.01-09-729517 - Fővárosi Törvényszék Cégbírósága

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